

HOUSE BILL 1768

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 49, Part 1 and Title 49, relative to sports
wagering.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 49, Part 1, is amended by
adding the following as a new section:

**4-49-134. Licensee's duty to restrict access to interactive sports wagering on
campuses of public institutions of higher education.**

(a) A licensee shall prohibit access to interactive sports wagering on the campus
of an institution of higher education.

(b) For purposes of prohibiting access to interactive sports wagering at a sports
venue utilized for sanctioned collegiate or athletic sports or sporting events as described
in subdivision (c)(1)(B), a licensee shall prohibit such access at the sports venue for the
entire calendar day on which such sport or sporting event is conducted.

(c) As used in this section:

(1) "Campus":

(A) Means the geographical boundaries of an institution of higher
education's primary contiguous campus property, including the entirety of
any parcel of non-contiguous property or satellite facility of the institution
within one (1) mile of any boundary of the institution's primary contiguous
campus property that is used for student residential or communal
purposes, but excluding those used solely for classrooms, maintenance,
administrative purposes, or storage; and

(B) Includes each sports venue located in this state that is utilized by an institution for a sanctioned collegiate or athletic sport or sporting event that is governed by a sports governing body and that is not located on the institution's campus, as defined in subdivision (c)(1)(A), regardless of whether such venue is owned by the institution;

(2) "Institution of higher education" or "institution" means a public institution of higher education that sanctions one (1) or more collegiate or athletic sport or sporting event that is governed by a sports governing body; and

(3) "Sports venue," as described in subdivision (c)(1)(B), includes contiguous property to or ancillary facilities of the sports venue owned by or under the control of the sports venue for dedicated sports venue parking or activities directly related to the sanctioned collegiate or athletic sport or sporting event taking place at the sports venue.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

49-7-194. Duty of public institution of higher education to restrict access to interactive sports wagering on campus.

(a) An institution of higher education that provides internet access to students, faculty, staff, or the general public shall prohibit access to interactive sports wagering, as that term is defined in § 4-49-102, on its campus through any server or hard-wired or wireless network maintained or operated by the institution for purposes of accessing the internet.

(b) As used in this section:

(1) "Campus" has the same meaning as defined in § 4-49-134(c); and

(2) "Institution of higher education" has the same meaning as defined in

§ 4-49-134(c).

SECTION 3. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.